

IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLORADO
Senior District Judge Richard P. Matsch

Civil Action No. 08-cv-00996-RPM

KATHY D. CRUZ and
RAMON L. CRUZ, JR.,

Plaintiffs,

v.

CHRISTOPHER R. COLE, M.D.,

Defendant.

VERDICT

We, the jurors, are all agreed on the following answers to the Court's questions.

1. Did the plaintiffs prove by a preponderance of the evidence that the Defendant, Dr. Christopher R. Cole, was negligent by reversing the SVC and RV connections when implanting the Guidant device in Kathy D. Cruz on September 13, 2005?

NO
(Yes or No)

If the answer to this question is no, do not answer the following questions and the Presiding Juror will sign and date this form.

If the answer to this question is yes, answer the following questions.

2. Did the plaintiffs prove by a preponderance of the evidence that Dr. Christopher R. Cole's negligence caused Kathy D. Cruz damages and losses?

(Yes or No)

If the answer is yes, then state the amount of such damages in the following categories:

a. Economic damages and losses \$ _____

b. Non-economic damages and losses \$ _____

3. Did the plaintiffs prove by a preponderance of the evidence that Dr. Christopher R Cole's negligence caused damages to Ramon L. Cruz?

(Yes or No)

If the answer is yes, then state the amount of such damages.

\$ _____

4. Did the defendant, Dr. Christopher R. Cole, prove by a preponderance of the evidence that the plaintiff, Kathy D. Cruz, was negligent?

(Yes or No)

If the answer to question No. 4 is yes, answer this additional question.

5. Taking as 100 percent the combined negligence of the plaintiff, Kathy D. Cruz, and the defendant, Dr. Christopher D. Cole, what percentage of the plaintiffs' damages was caused by the defendant, Dr. Christopher R. Cole, and what percentage was caused by the plaintiff, Kathy D. Cruz?

Dr. Christopher R. Cole _____ %

Kathy D. Cruz _____ %

Total 100%

DATED: March 18, 2010

Presiding Juror